

3.

CASE #	CASE NAME	HEARING NAME
CVPS2405375	PELAYO VS FORD MOTOR COMPANY	MOTION FOR ATTORNEYS FEES BY CLEMENTE PELAYO

Tentative Ruling:

No opposition filed.

Plaintiff's Motion for Attorney's Fees, Costs and Expenses GRANTED.

Plaintiff awarded \$24,210 in costs + \$637.18 in costs for a total of \$24,847.18.

No award for anticipated time for completion of this motion as no opposition was filed.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509063	VEASEY VS SRACSO	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: Each protective order statute requires that the motion be "accompanied by a meet and confer declaration under Section 2016.040." (CCP §§ 2030.090(a); 2031.060(a); 2033.080(a).) Section 2016.040, in turn, requires that the declaration state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (CCP § 2016.040(a).)

At the time the motion was filed, Defendants had failed to satisfy their meet and confer requirement. Defendants' counsel submitted a declaration which reflected only a single written communication, with no effort to follow up. The court's June 8, 2026 order found this meet and confer effort insufficient and continued the hearing to allow the parties to conduct a meaningful meet and confer.

Following the court's order, the parties conducted a telephone meet and confer on June 25, 2026. However, the supplemental declaration filed by Defendants' counsel does not comply with the Court's June 8, 2026, order. It states only that counsel met by telephone, that Plaintiff would not change position, and that counsel would report the results to the court. (Horwitz Decl. 2:4–8.) The declaration does not identify the specific discovery requests discussed, the issues remaining in dispute, or the parties' respective positions on each issue.

The court's June 8, 2026 order required moving party, after meeting and conferring, to vacate the hearing, file a joint declaration identifying the specific outstanding disputes and the parties' respective positions, or file a sworn declaration if Plaintiff refused to respond or cooperate. (Court's Minute Order dated June 8, 2026.)

The supplemental declaration therefore does not comply with the court's specific directive. Without identification of the specific disputed discovery requests and the parties' positions on each, the court cannot evaluate whether further informal resolution is possible or craft targeted relief.